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WOLFORD ET AL. *v.* LOPEZ, ATTORNEY GENERAL OF HAWAII

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 24–1046. Argued January 20, 2026—Decided June 25, 2026

For years, the State of Hawaii made it almost impossible to obtain a license to carry a firearm. Four years ago, however, this Court held in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, that the Second and Fourteenth Amendments protect the right to carry handguns outside the home for self-defense. Hawaii responded by replacing its old law on carry permits with new laws that achieved a similar result. At issue in this case is a Hawaii law that prohibits firearms on private property open to the public without the express and affirmative consent of the property owner. Hawaii's new rule imposes severe restrictions on the daily activities of residents who have satisfied the State's rigorous requirements for the issuance of a carry permit. When these permit holders leave home, not only must they take care to avoid all the territory where the possession of a gun is prohibited outright, but they may also be barred from entering many places that people routinely visit in the course of their daily routines, such as gas stations, restaurants, and stores. This law flips the default rule at common law, under which anyone has an implied license to enter property held open to the public unless the property owner withdraws consent.

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In *District of Columbia* v. *Heller*, 554 U. S. 570, this Court held that the Second Amendment protects an individual right to keep and bear arms, with the Amendment's "central" concern being the fundamental right of self-defense. *Id.*, at 577. *Heller* instructed courts to ascertain the scope of the right by looking to history and emphatically rejected an ahistorical "judge-empowering 'interest-balancing inquiry.'" *Id.*, at 634. The Court later held in *McDonald* v. *Chicago*, 561 U. S. 742, that the Second Amendment right applies equally to the Federal Government and the States through the Fourteenth Amendment, settling the question whether the Second Amendment embodies a uniform national standard or one that varies from one locale to another.

In *Bruen*, the Court fleshed out the process of historical analysis required in a Second Amendment case, holding that the analysis involves two steps. First, a court must determine whether the challenged law falls within the plain text of the Amendment's language by asking whether the law applies to "the people" (*i. e.*, all members of the political

community) and restricts the "keep[ing]" (*i. e.*, possession) or "bear-[ing]" (*i.e.*, carrying) of "Arms" (*i. e.*, weapons customarily used for offensive or defensive purposes). If a challenged law falls within the plain text, it is presumptively unconstitutional—which means that it *may* violate the preexisting right that the Amendment codified. But the government may show that its challenged law did not infringe the historical understanding of the codified right. While a variety of sources may aid this inquiry, the best evidence is often what *Bruen* called historical analogues—old legal rules from which a court may draw a strong inference that the modern law at issue is consistent with the codified right. *Bruen* identified three important inquiries for evaluating proffered historical analogues: the number of jurisdictions in which they were adopted, the extent to which they were well-accepted, and whether any analogue or collection of analogues is "relevantly similar" to the modern law in terms of "how" and "why" it restricted the keeping or bearing of arms. 597 U. S., at 29.

Petitioners—three residents of Maui County who possess concealed-carry permits and an organizational plaintiff with members who have such permits—filed suit in federal court seeking temporary and permanent injunctive relief, contending that the law at issue violates their constitutional rights. The District Court enjoined enforcement of the law as applied to private property open to the public, but the Ninth Circuit reversed that injunction.

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Held: Hawaii's law prohibiting licensed concealed-carry permit holders from carrying handguns on private property open to the public without the property owner's express authorization violates the Second and Fourteenth Amendments. Pp. 201–212.

(a) The restrictions imposed by Hawaii's challenged law fall within the plain text of the Second Amendment, so the law is presumptively unconstitutional. No party disputes that petitioners are among "the people" protected by the Second Amendment or that they seek to "bear" "Arms." Therefore, "the plain text of the Second Amendment protects" what petitioners want to do: carry handguns for self-defense. *Bruen*, 597 U. S., at 32. To be sure, owners of establishments that are open to the public can admit or exclude persons who are carrying guns for self-defense under either the common-law rule or Hawaii's law. But Hawaii's shift from the common-law rule unquestionably imposes a new and significant burden on the exercise of the right recognized in *Bruen*. For example, proprietors who do not object to entry by carry-permit holders may be reluctant to post welcoming signs for fear of alienating customers. So under Hawaii's new default rule, a proprietor in this category may only be willing to consent discreetly to the entry of permit

holders who make the effort to inquire. This arrangement imposes a new burden on permit holders who will have to somehow obtain permission to carry a firearm on the property before stepping foot on it. The law severely hampers the ability of law-abiding citizens to exercise the right *Bruen* recognized as they go about their daily lives. Pp. 201–205.

(b) Hawaii's proffered historical analogues do not support the constitutionality of its new default rule. Pp. 205–212.

(1) Hawaii's argument that its "particular customs and laws," Brief for Respondent 24, support the new default rule fails because the Second Amendment has the same meaning in all parts of the United States. The Second Amendment cannot give way to the "spirit of Aloha" in Hawaii, contra, *State* v. *Wilson*, 154 Haw. 8, 27, 543 P. 3d 440, 459, any more than it can yield to the spirit of the Big Apple (*Bruen*) or the Windy City (*McDonald*). Merely local attitudes can neither shrink nor inflate the meaning of fundamental Bill of Rights guarantees that apply to the States through the Fourteenth Amendment. Pp. 205–207.

(2) The State's colonial and early state law analogues consist almost entirely of laws that prohibited unauthorized hunting of deer or small game on someone else's private property. These laws—including a 1721 Pennsylvania law, 1722 New Jersey statute, 1728 Maryland statute, 1763 New York law, and 1771 New Jersey law—targeted unauthorized hunting and applied to land where game could be found, not retail establishments that residents frequent as part of their daily routines. Those laws had little if any impact on the Second Amendment's central objective of protecting the fundamental right to self-defense, and their obvious aim was to prevent the distinctive harms and risks associated with unauthorized hunting. The gap between the State's anti-poaching analogues and its new rule is too wide. Pp. 207–210.

(3) The State's remaining analogues are even weaker. An 1893 Oregon law prohibited armed trespass on "enclosed premises," but it is unclear whether such premises included commercial establishments open to the public. Regardless, a lone statute adopted nearly a century after the adoption of the Second Amendment and well after the adoption of the Fourteenth Amendment sheds little if any light on the meaning of the Second Amendment right.

Hawaii also relies on an 1865 Louisiana statute enacted as part of the notorious Black Codes to disarm blacks and leave them defenseless against attacks. As the Court laid out in *McDonald*, the right to keep and bear arms was crucially important for vulnerable blacks during this period. See 561 U. S., at 757, 771, 776–779; *id.*, at 843–846 (THOMAS, J., concurring in part and concurring in judgment). This was well-understood by the Republicans in Congress who were responsible for drafting, approving, and securing the ratification of the Fourteenth Amendment.

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Against this history, Hawaii's claim that this tainted artifact from Louisiana's Black Code illuminates the original understanding of the right to keep and bear arms cannot be taken seriously. And even setting aside this statute's pedigree, it carries no weight because it was neither widespread nor widely accepted. Pp. 210–214.

116 F. 4th 959, reversed and remanded.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, GORSUCH, KAVANAUGH, and BARRETT, JJ., joined. BARRETT, J., filed a concurring opinion, in which THOMAS and GORSUCH, JJ., joined as to Part II–B, *post*, p. 213. KAGAN, J., filed a dissenting opinion, *post*, p. 225. JACKSON, J., filed a dissenting opinion, in which SOTOMAYOR, J., joined, *post*, p. 226.

Alan Alexander Beck argued the cause for petitioners. With him on the brief were *Mark W. Pennak* and *Kevin O'Grady*.

Principal Deputy Solicitor General Harris argued the cause for the United States as *amicus curiae* urging reversal. With her on the brief were *Solicitor General Sauer*, *Assistant Attorney General Dhillon*, *Principal Deputy Assistant Attorney General Osete*, and *Vivek Suri*.

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Neal Kumar Katyal argued the cause for respondent. With him on the brief were *Colleen E. Roh Sinzdak*, *William E. Havemann*, *Kristina Alekseyeva*, *Anne E. Lopez*, Attorney General of Hawaii, *Kaliko'onālani D. Fernandes*, Solicitor General, *Mary B. McCord*, *Alexandra Lichtenstein*, *William Powell*, and *Samuel P. Siegel*.*

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*Briefs of *amici curiae* urging reversal were filed for the State of Montana et al. by *Austin Knudsen*, Attorney General of Montana, *Christian B. Corrigan*, Solicitor General, by *Raúl R. Labrador*, Attorney General of Idaho, *Alan Hurst*, Solicitor General, *Sean M. Corkery*, Assistant Solicitor General, and *Joseph S. St. John*, *Anna W. St. John*, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Stephen J. Cox* of Alaska, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Christopher M. Carr* of Georgia, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Catherine L. Hanaway* of Missouri, *Michael T. Hilgers* of Nebraska, *John M. Formella* of New Hampshire, *Drew H. Wrigley* of North Dakota, *Dave Yost* of Ohio,

JUSTICE ALITO delivered the opinion of the Court.

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Briefs of *amici curiae* urging affirmance were filed for the District of Columbia et al. by *Brian L. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, *Ashwin P. Phatak*, Principal Deputy Solicitor General, and *Perry R. Cao*, Assistant Attorney General, by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General, *Sarah A. Hunger*, Deputy Solicitor General, and *Brianna Yang*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Letitia James* of New York, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for the City of Baltimore et al. by *Paul R. Q. Wolfson*, *Anna L. Deffebach*, and *Alethea Anne Swift*; for the Brady Center to Prevent Gun Violence et al. by *Daniel A. Rubens*, *Thomas M. Bondy*,